

notification of loss of rights pursuant to R. 69(1) EPC 1973. The Legal Board pointed out that both referred to the 21-month period under R. 104b(1) EPC 1973, although, in the circumstances, the 31-month period was applicable. They were considered to be legally non-existent because they could not be based on any provision contained in the EPC or in the PCT. These communications, being legally non-existent, could not have any legal effect to the party's detriment.

In the PCT request in case J 3/94 the applicant had **designated** a European patent under "Regional Patent" and five PCT contracting states including Germany and the United Kingdom under "National Patent". However, in the demand for international preliminary examination, filed with the EPO as IPEA, only the five PCT member states were **elected**; under "Regional Patent" there was no cross indicating the European patent. The applicant argued inter alia that the election of DE and GB made the EPO an elected Office by operation of law. However, the Legal Board held that the EPO did not become an elected Office in this case. One of the principles implemented by Art. 31(4)(a) PCT was that it was the applicant's choice for which office he intended to use the results of the international preliminary examination. Furthermore, it was not only a matter for the EPC to decide whether an election made for the national route was also valid for the EPO. The validity of an election had to be decided during the international phase in order to give effect to the election. The IPEA had to examine the demand and the international authorities had to fulfil their obligations resulting from a valid election. The validity and scope of an election had to be clear not only for the applicant and the elected Office but also for the Authorities in the international phase. Its validity had to be assessed on a uniform basis by the Authorities concerned.

In J 4/94 the Legal Board had to consider whether the EPO was competent to interpret the applicant's demand for international preliminary examination differently from the United Kingdom Patent Office acting as IPEA. The Legal Board conceded that the demand was addressed to the IPEA, the competent body to deal with it. However, J 26/87 (OJ 1989, 329) had decided that the interpretation of the request for grant form by the receiving Office and the International Bureau was not binding on the EPO in its function as designated Office. The valid designation put the matter within the competence of the EPO as designated Office (Art. 2(xiii) PCT and Art. 153(1) EPC 1973). In the present case there was a defect in the demand, which the applicant should have been invited under R. 60 PCT to correct. A clear deviation by the IPEA from the intention expressed in the demand was not binding on the EPO. It was therefore possible for the EPO to regard itself as a validly elected Office. Consequently, under R. 104b(1) EPC 1973 (as in force prior to 1 March 2000) the time limit of 31 months applied.

3.2. Remedies under the PCT applied by the EPO as designated Office

3.2.1 Review (Art. 25, Art. 24(2) PCT), excusing of delays (Art. 48 PCT)

A decision of an **examining division** of 5 June 1984 (OJ 1984, 565) pursuant to Art. 153(2) EPC 1973 (see now R. 159(2) EPC) in conjunction with Art. 25 PCT and Art. 24(2) PCT concerned the authority of a designated Office under Art. 24(2) PCT to maintain the effect of an international application. The applicant had missed the time limit

for filing the representative's authorisation set by the Japanese Patent Office acting as receiving Office. The EPO, acting as designated Office, excused the non-observance of time limits which had been set by the receiving Office for the correction of formal deficiencies in accordance with Art. 14(1)(b) PCT in conjunction with R. 26.2 PCT (Art. 24(2) and 48(2)(a) PCT). The examining division found that the time limit under R. 26.2 PCT was comparable to time limits set by the EPO under Art. 121 EPC 1973 and granted re-establishment of rights according to Art. 122 EPC 1973 in respect of the time limit under Art. 121(2) EPC 1973.

J 17/99 also concerned the application of Art. 24(2) PCT. The formerly applicable precautionary designation of EP in the international application was not confirmed within the prescribed period and was therefore regarded as withdrawn (former R. 4.9(b)(ii), (c) PCT, and Art. 24(1)(i) PCT), with the consequence that the effect of the international application under Art. 11(3) PCT – i.e. that of a European filing – ended on the same date. The Legal Board declined to exercise its discretion under Art. 24(2) PCT to maintain the effect provided for under Art. 11(3) PCT: when exercising that discretion as designated Office, the EPO had to apply the same rules and principles as for identical or comparable situations arising with direct European applications (here concerning correction of designations). This non-discriminatory approach was not only a fundamental principle of the PCT itself (see, for example, Art. 26 and 48(2)(a) PCT) but also a direct consequence of Art. 150(3) EPC 1973 (see now Art. 153(2) EPC). See also J 3/81, OJ 1982, 100; J 8/01, OJ 2003, 3.

In J 19/16 the Legal Board came to the conclusion that the loss of rights, i.e. the deemed withdrawal of the application, which occurred in the international phase could no longer be remedied in the national phase. Parallel competences of the receiving Office and the designated Office in respect of the same application were not excluded. The Legal Board held that the time limit, if any, for making a request to be excused under Art. 24(2) PCT was subject to national law only. The two-month time limit pursuant to Art. 25 PCT was therefore not applicable under Art. 24(2) PCT.

3.2.2 Rectification of errors made by the receiving Office or the International Bureau (R. 82ter PCT)

The appeal in J 3/00 concerned the question whether the Receiving Section should have rectified, under R. 82ter PCT, a purported error of the RO/EPO for the purposes of the regional phase before the EPO. The international application had been filed two days before expiry of the priority period with the description and claims in Swedish by mistake. The RO/EPO accorded as the international filing date the day of receipt of the corrected, i.e. English-language, documents (Art. 11(2)(b) PCT) and furthermore cancelled the priority claim. The applicant argued that the RO/EPO should have warned it of the deficiency. The Legal Board examined whether the filing date of the international application was incorrect due to an error made by the RO/EPO which was such that, had it been made by the EPO (as designated Office) itself, it would have to be rectified under the EPC (R. 82ter PCT). Thus, according to the constant jurisprudence of the boards of appeal concerning the protection of legitimate expectations, as confirmed in G 2/97 (OJ 1999, 123), the EPO was required to warn the applicant of any loss of rights if such a

warning could be expected in all good faith. The Legal Board found the relevant conditions to be met: the deficiency was immediately identifiable on the face of the application in the course of the Art. 11(1) PCT check and the applicant was in a position to correct it at very short notice. For a further case relating to R. 82ter PCT, see J. 10/04.

3.2.3 Restoration of the right of priority (R. 49ter PCT)

The Legal Board held in J. 13/16 that if, in the international phase, a receiving Office had restored a right of priority under the "unintentional" criterion of R. 26bis.3(a)(ii) PCT, the restoration was not effective in proceedings before the EPO acting as designated Office, since the EPO applies the "due care" criterion (R. 49ter.1(b) PCT). In such cases, within the period specified in R. 49ter.2(b)(i) PCT, the applicant must file a (new) request for restoration of a right of priority under R. 49ter.2 PCT with the EPO acting as designated Office. For the purposes of R. 49ter.2 PCT, the request filed with the receiving Office under R. 26bis.3(b) PCT could not be taken into account in the proceedings before the EPO acting as designated Office. See also J. 10/17.

A request for restoration of rights as specified in R. 49ter.2 PCT is deemed not to have been filed if the applicable fee has not been paid within the relevant time limit (J. 8/18, J. 1/19).

4. Language of the proceedings

According to the Enlarged Board of Appeal In G. 4/08 (OJ 2010, 572), if an international application has been filed and published under the PCT in one official language of the EPO, it is not possible, on entry into the European phase, to file a translation of the application into one of the other two EPO official languages, which would then become the language of the proceedings. Neither the EPC 1973 nor the EPC 2000 can be interpreted as allowing that. Nor is there any conflict between EPC and PCT provisions. EPO departments cannot use, in written proceedings on a European patent application or an international application in the regional phase, an EPO official language other than the language of proceedings used for the application under Art. 14(3) EPC.

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1. Legal status of the EPO boards of appeal

1.1. The judiciary of the European Patent Organisation

In **G 3/08** (OJ 2011, 10) the Enlarged Board held that the European Patent Organisation is an international, intergovernmental organisation, based on the separation of powers principle, which the sovereign contracting states have entrusted with the exercise of some of their national powers in the field of patents. The EPC assigns executive power to the Office to grant patents and to its President to manage the Office in organisational respects (Art. 4(3) and 10 EPC), while to the Administrative Council it assigns limited legislative powers restricted to lower-ranking rules (Art. 33 EPC), along with financial and supervisory powers. The boards of appeal, which in their decisions are bound only by the EPC (Art. 23(3) EPC), are assigned the role of an independent judiciary in this patent system (Art. 21 to 23 EPC; see also **G 6/95**, OJ 1996, 649, points 2 ff. of the Reasons), even if – at the time **G 3/08** was rendered – they were not an independent organ of the Organisation (Art. 4(2) EPC) but structurally integrated departments of the Office (Art. 15 EPC; see also **R 19/12** of 25 April 2014 and **R 2/14** of 17 February 2015). Like the judiciary of any democratic entity based on the separation of powers principle, the boards of appeal guarantee the due process of law within the Organisation. They are also assigned interpretative supremacy with regard to the EPC in terms of its scope of application (see Art. 23(3) EPC). Under Art. 21(1) EPC they are responsible for reviewing decisions taken by the Office in grant and opposition proceedings. Their interpretation of the EPC is the